

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 09/15/26      TIME: 1:30 P.M.      DEPT: A      CASE NO: CV0004188

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

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| <p>PLAINTIFF:      CITY OF LARKSPUR</p> <p style="text-align:center">vs.</p> <p>DEFENDANT:    ROSE LANE MASTER<br/>ASSOCIATION</p> |  |
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NATURE OF PROCEEDINGS: MOTION – EVIDENTIARY – DISCOVERY FACILITATOR PROGRAM

**RULING**

The City of Larkspur’s (“The City” or “Plaintiff”) Motion to Resolve Disputed Evidentiary and Legal Issues Affecting the Determination of Compensation is GRANTED.

***Objections to Evidence***

Defendant Rose Lane Master Association’s (“Defendant”) Objections to the Skinner Declaration Nos. 1-3 are OVERRULED.

Defendant’s Objection to Plaintiff’s Reply in Support of Motion is OVERRULED. Although titled as an Objection, the document does not follow the rules for Objections and does not identify the material objected to by page and line number. However, the Court notes that the legal premise advanced by the document is sound – relief is limited to that which was identified in the Notice of Motion and requests outside that scope raised for the first time in the Reply will not be granted.

***Background***

In support of its Motion, Plaintiff provides the following background:

In 2010, the Larkspur City Council approved the Rose Garden Precise Development Plan, which laid out the long-term plans for the Rose Garden Subdivision. (Skinner Decl., ¶ 3.) Per the development agreement for the subdivision, the developer dedicated a large parcel in the northwest portion of the subdivision to the City for community uses. (*Id.*) In 2013, the City Council adopted a Master Plan, which provided for development of the Larkspur Library and Community Space (the “Project”) on this parcel. (*Id.*) The Project includes a public library,

community space, outdoor gathering spaces, and a parking area. (*Id.*, ¶ 4.) Access to the Project’s parking area is via Rose Lane, south of Doherty Drive. (*Id.*) Rose Lane is a private street owned by Defendant, which is the homeowners’ association for the Rose Garden Subdivision. (*Id.*)

To provide public access to the new library, the City brought this eminent domain action to acquire a permanent public right-of-way easement across a portion of Rose Lane. (See Compl.) The right-of-way easement is for public roadway purposes and includes the right to construct, reconstruct, and maintain improvements on the easement area. (See Compl., Ex. 2.) The area of Rose Lane over which the City is acquiring the public right-of-way easement is already encumbered by five other easements and is designated as a street on the subdivision map. (Skinner Decl., ¶ 5, Ex. 1 (Subdivision Map).) Four of the easements—a Drainage Easement, City Access Easement, Public Utility Easement, and Waterline Easement—cover the entirety of Rose Lane. (*Id.*, Ex. 1, p. 4.) These easements require that the easement area be “kept open and free from buildings and structures of any kind.” (*Id.*) In addition to the four easements covering the entirety of Rose Lane, a 15-foot-wide Sanitary Sewer Easement runs down the center of the street. (*Id.* ¶ 6 & Ex. 1, p. 4.) The Sanitary Sewer Easement prevents the Owner from planting trees with large root systems or constructing permanent structures of any kind. (*Id.*, Exh. 2 (Sanitary Sewer Easement), p. 1.)

By this Court’s order, the City took possession of the public right-of-way easement on February 17, 2025. See Notice of Entry of Order of Possession (filed Feb. 7, 2025). Thereafter, the City reconstructed that portion of Rose Lane to provide access to the new library, which included widening the street, re-routing a portion of the sidewalk, adding a traffic circle to the street, relocating some streetlights, and removing and replacing some landscaping. (Skinner Decl., ¶ 7-9 & Ex. 3 (Library Development Plans).)

The matter of compensation due to Defendant remains outstanding. Trial is currently set for October 15, 2026. During the pretrial exchange of valuation data used by each side’s experts, a dispute has arisen over legal issues surrounding valuation methodology.

The City brings this Motion pursuant to Code of Civil Procedure section 1260.040(a), and asks the Court to rule that (1) Rose Lane and its improvements must be valued in the condition in which the Owner actually held them, encumbered by the existing easements and subdivision map; and (2) any opinion deducting for those encumbrances must measure the deduction against the same standard used to derive the unencumbered value.

### ***Legal Standard***

The California Supreme Court’s decision in *Weiss v. People ex rel. Dep’t of Transportation* (2020) 9 Cal.5th 840, 852–56, provides a summary of the law applicable in this case:

The California Constitution guarantees “just compensation” whenever private property is “taken or damaged for a public use.” (*Id.*, at p. 852 citing Cal. Const., art. I, § 19, subd. (a).) Eminent domain and inverse condemnation are distinct procedures for ensuring that property owners receive just compensation whenever public entities take or damage their property. (*Id.*) Certain

aspects of eminent domain law and procedure are codified in the Code of Civil Procedure - among them section 1260.040—make up the Eminent Domain Law. (*Id.*)

In an eminent domain action, a public entity exercises its authority to condemn private property. (*Id.*) The public entity concedes liability at the outset of an eminent domain action, so “there is ordinarily no question that [the public entity] has ‘taken or damaged’ ” the property at issue. (*Id.*, at p. 853 citing *San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 939 (*San Diego Gas*).) For this reason, “[e]minent domain actions typically focus on the amount of compensation owed the property owner.” (*Id.*, internal citations omitted.)

The state constitution further affords property owners the right to have a jury determine the amount of compensation they are owed when a public entity takes or damages their property. (*Id.*, citing Cal. Const., art. I, § 19, subd. (a).) However “this jury right applies only to determining the appropriate amount of compensation ....” (*Id.*, citing *City of Perris v. Stamper* (2016) 1 Cal.5th 576, 593 (*City of Perris*).) All other questions of fact or mixed questions of law and fact are decided by the court. (*Id.*, citing *Metropolitan Water Dist. of So. California v. Campus Crusade for Christ, Inc.* (2007) 41 Cal.4th 954, 971 (*Metropolitan Water Dist.*).)

In both eminent domain actions and inverse condemnation actions, the key evidence in a jury trial is expert testimony concerning the valuation of the property at issue. (*Id.*, at p. 854.) Eminent Domain Law provides special pretrial procedures for the exchange of valuation data used by each side's experts and the making of final offers and demands. (*Id.*, citing Code Civ. Proc., §§ 1258.210–1258.300.) Legal issues and mixed questions of law and fact frequently arise prior to trial concerning the proper measure of compensation or concerning whether the property owner is entitled to compensation for a specific kind of damage, loss, or injury. (*Id.* citing *City of Perris*, *supra*, 1 Cal.5th 576, 593–596; *Metropolitan Water Dist.*, *supra*, 41 Cal.4th at p. 971.)

The Legislature enacted section 1260.040 to promote earlier resolution of issues affecting the determination of compensation, thereby preventing these issues from improperly going to the jury and increasing the likelihood of pretrial settlement. (*Id.*, at pp. 855–6. Internal citations omitted.) Section 1260.040 authorizes a party to an eminent domain action to file a motion requesting a ruling on “an evidentiary or other legal issue affecting the determination of compensation” and provides that the trial court may postpone the deadlines for final settlement offers “for a period sufficient to enable the parties to engage in further proceedings before trial” after receiving the court's ruling on the motion. (*Id.*, at p. 856.) The section specifies that it “supplements, and does not replace any other pretrial or trial procedure otherwise available to resolve an evidentiary or other legal issue affecting the determination of compensation.” (*Ibid.* Internal citations omitted.)<sup>1</sup>

### Discussion

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<sup>1</sup> Thus, a motion under section 1260.040 was intended to allow resolution of evidentiary and legal issues affecting the determination of compensation well before the eve of trial, and even before the parties exchange final offers and demands. (*Id.*) In recommending the Legislature adopt section 1260.040, the Law Revision Commission expressed its hope that earlier decision of these issues would narrow the gap between competing expert valuations, thereby facilitating settlement through alternative dispute resolution. (*Id.* Internal citations omitted)

On July 9, 2026, the parties served their expert witness lists and statements of valuation data pursuant to California Code of Civil Procedure section 1258.250. The City's Statement of Valuation Data concluded that just compensation for the City's acquisition of the public right of-way easement should be \$126,000. (Beaton Decl., Ex. 1 ("City's Am. SOVD") at Ex. A, p. 4.) The Owner's Statement of Valuation Data concluded that just compensation should be \$880,000. (*Id.*, Ex. 2 ("Owner's SOVD") at Ex. A, p. 4.)

The City argues that the \$754,000 difference in the experts' opinions traces to a single step in the analysis: how each appraiser accounted for the easements already encumbering Rose Lane. The Owner's appraiser concluded that the impact of the existing easements resulted in a 10 percent discount off the value of developable land. (*Id.*) In contrast, the City's appraiser reduced the value of the Rose Lane property, as developable, by 90 percent to account for the existing easements which render it undevelopable. (Beaton Decl., Ex. 1 at Ex. A, p. 4. )

The City further argues Owner's appraiser reached the 10% discount by asking whether the existing easements interfere with Rose Lane's use as a private street (they do not). The City counters that the correct question is how much those easements reduce the value of the developable land he used to set his baseline valuation. The City argues that the same error runs through the Owner's appraiser's treatment of the improvements within the easement area, which he values as though the Owner holds them free of any encumbrance.

The Opposition counters that the appraisers' difference of opinion is one of fact, an amount to be determined by the jury, and that the City's Motion misunderstands the Owner's appraiser's methodology.

Trial judges have a substantial gatekeeping responsibility when it comes to expert testimony. (*People ex rel. Dep't of Transportation v. Dry Canyon Enters., LLC* (2012) 211 Cal.App.4th 486, 493, citing *Sargon Enterprises v. Univ. of Southern Calif.* (2012) 55 Cal.4th 747, 769.) In particular, courts are to ensure that opinions are not speculative, based on unconventional matters or grounded in unsupported reasoning. (*Id.*, citing *Sargon, supra*, at pp. 771–72.) This gatekeeping role, however, does not involve choosing between competing expert opinions. The gatekeeper's focus must be solely on principles and methodology, not on the conclusions that they generate." (*People ex rel. Dep't of Transportation v. Dry Canyon Enters., LLC, supra*, at p. 493. Internal citations omitted.)

When a public entity seeks to condemn an easement over land already subject to an easement, the value of the second easement is the difference in value of the strip of land before and after the imposition of the second easement. (*County Sanitation Dist. v. Watson Land Co.* (1993) 17 Cal.App.4th 1268, 1280 ["Alternatively, if a public entity seeks to condemn an easement over land already subject to an easement, the value of the second easement is the difference in value of the strip of land before and after the imposition of the second easement. This value may only be nominal."].)

In this case, the Court agrees that Defendant's appraiser's methodology is flawed. The methodology used to generate the unencumbered parcel value must be the same as that used to generate the encumbered (in this case by five other easements) value. The appraiser would then

take that encumbered value and determine the difference after further encumbrance by the easement being taken by eminent domain. The Court rejects as unsound the methodology offered by Defendant's expert.

For these reasons, the Motion is GRANTED.

***All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.***

***The Zoom appearance information for September, 2026 is as follows:***

***<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>***

Meeting ID: 160 526 7272

Passcode: 026935

***If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>***

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 09/15/26      TIME: 1:30 P.M.      DEPT: A      CASE NO: CV0005674

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

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PLAINTIFF:      NICO STEINER

vs.

DEFENDANT:    CITY OF SAN RAFAEL

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NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

**RULING**

Defendant City of San Rafael’s (“City”) motion for summary judgment or, alternatively, summary adjudication is **DENIED**.

***Background***

This is a personal injury matter relating to a pool inflatable. Plaintiff Nico Steiner (“Plaintiff”) alleges that on August 13, 2023, he used the “AquaDash” inflatable obstacle course at the Terra Linda Community Pool. (First Amended Complaint (“FAC”), p. 4.) Plaintiff was 46 years old at the time and stood at five feet, eleven inches tall. (*Ibid.*) According to the FAC, the AquaDash was placed in an area where the pool was only about four feet deep. (*Ibid.*) Plaintiff alleges that on the date in question, there was no sign advising swimmers to refrain from using the AquaDash based on age or height considerations. (*Ibid.*) Plaintiff allegedly slipped from the AquaDash and fell into the water head first, hitting his head on the bottom of the pool. (*Ibid.*) The FAC asserts causes of action for dangerous condition of public property and general negligence against the City and ten unidentified City agents or employees.

Before the Court is the City’s motion for summary judgment, or, alternatively, summary adjudication.

***Legal Standard***

Any party may move for summary judgment. (Code of Civ. Proc, § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The motion “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c); *Aguilar, supra*, 25 Cal.4th 826, 843.) Similarly, a party may move for summary adjudication as to a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication . . . shall proceed in all procedural respects as a